FOR BUSINESS OWNERS, FAMILY OFFICES & NRIS · 12 NOVEMBER 2026

5 moves that affect your business this week.

- NCLT fines SREI ₹1 crore for a pressure-tactic insolvency petition
- Lux keeps ₹1.58 crore of CENVAT credit on agency-billed ads
- Voltas holds a ₹2.55 crore award with 18% interest running since 2019
- Madras HC carves out ₹1.01 crore of retention money without sinking the award
- ED attaches ₹121 crore of hotel, land and boats in an Andaman bank case

SWIPE →

NEXT

IBC · NCLT DELHI

NCLT fines SREI ₹1 crore for pressure-tactic insolvency petition

By an order dated 6 November 2026, reported on 11 November, the NCLT Delhi Bench dismissed SREI Equipment Finance's Section 7 petition against JBJ Technologies, which rested on two disputed corporate guarantees behind ₹6.65 crore of loans to the late Sanjay Prakash. It imposed a ₹1 crore penalty under Section 65 of the IBC, the provision that punishes filing insolvency for a purpose other than genuine resolution, after finding SREI had suppressed material correspondence, with the sum payable to IBBI within 30 days.

WHO IS EXPOSED · WHAT TO CHECK

Promoters whose company has signed a guarantee for a group or family loan are exposed, and so are lenders tempted to use an insolvency filing as a collection tool. This week, pull every guarantee your company has given and confirm the board approval and signatures that authorised it.

TAX · CESTAT CHENNAI

Lux keeps ₹1.58 crore credit despite agency-addressed invoices

On 11 November 2026 the CESTAT Chennai Bench dismissed the Revenue's appeal in Principal Commissioner of GST and Central Excise, Coimbatore v. Lux Industries, Excise Appeal No. 42394 of 2018. It upheld ₹1,58,15,615 of CENVAT credit, the old service-tax input credit, on broadcasting services bought through an advertising agency, because Lux commissioned the ads, bore the charges and the tax, and the agency never claimed the credit itself.

WHO IS EXPOSED · WHAT TO CHECK

CFOs of consumer brands with legacy service-tax or GST disputes over agency-routed media spend are exposed. Check this week that every intermediary invoice is backed by proof that your company commissioned, paid for and used the underlying service.

ARBITRATION · MADRAS HIGH COURT

Voltas award of ₹2.55 crore survives with 18% interest

The Madras High Court, Justice D. Bharatha Chakravarthy, upheld an arbitral award requiring Appu Hotels to pay Voltas ₹2,55,51,052 for electrical and air-conditioning work at the Le Meridien, Coimbatore, as reported on 11 November 2026. Interest runs at 18% a year from 1 March 2019, the date of the award, until actual payment, so the bill has compounded through more than seven years of challenge.

WHO IS EXPOSED · WHAT TO CHECK

Hotel and real-estate owners sitting on an unpaid award while they fight it in court are exposed, because the interest clock never stops. This week, ask your counsel what the interest on every pending award against you adds up to today and whether a court deposit would halt it.

ARBITRATION · MADRAS HIGH COURT

₹1.01 crore retention claim cut without sinking Voltas award

In the same Appu Hotels v. Voltas judgment, Original Petition No. 680 of 2019, the court set aside ₹1,01,53,833 of retention money, the sum an employer holds back until defects are cleared, together with interest on it, after Voltas agreed not to press that part. The court severed only that component and left the main award standing rather than reopening the whole dispute.

WHO IS EXPOSED · WHAT TO CHECK

Contractors and the companies that hire them are exposed wherever a retention clause is loosely drafted, because that is the piece a court will carve out first. This week, read the retention and defect-liability terms in your live construction contracts and confirm exactly when the money falls due.

PMLA · ENFORCEMENT DIRECTORATE

ED attaches ₹121 crore in Andaman cooperative bank probe

By a provisional attachment order dated 5 November 2026, announced on 11 November, the Enforcement Directorate froze ₹121 crore of assets in an alleged ₹500 crore cooperative bank fraud in the Andaman and Nicobar Islands involving former MP Kuldeep Rai Sharma. The 35 immovable and five movable properties include a hotel, land parcels, bank deposits and two semi-submarine tourist vessels imported from Croatia; these remain allegations and no adjudicating authority confirmation has been reported.

WHO IS EXPOSED · WHAT TO CHECK

Family offices and promoters who hold operating businesses or property alongside a cooperative bank role or borrowing are exposed, because attachment reaches the hotel and the boats, not just the loan money. This week, map which family assets sit in entities that also carry bank directorships or guarantees, and separate them.

THE THROUGH-LINE

Every item today turns on paperwork that someone signed years ago: a guarantee, an agency invoice, a retention clause, a bank-linked holding. The forum that reads it later will not care what you meant, only what the document and the correspondence actually say.

If any of these touches your company or family, message me the number. I will tell you where you stand.

OWN THE BRIEF

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